

TENTATIVE RULING

Case: **Howerton v. Davita, Inc. et al.**
 Case No. CV-2025-1214

Hearing Date: **January 22, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Yasmine Howerton’s motion for reconsideration of order sustaining demurrer without leave to amend is **DENIED**. (Code Civ. Proc., § 1008, subd. (a).) The Court finds that plaintiff’s motion it is not based on “new or different facts, circumstances or law” as required, nor have defendants shown that what they seek to correct is an error of law. (Code Civ. Proc., § 1008, subd. (a); *Mink v. Superior Court* (1992) 2 Cal.App.4th 1338, 1342 [to be entitled to reconsideration, a party needs to show not only evidence of new or different facts exists, but also a satisfactory explanation for failing to produce such evidence at an earlier time]; *In re Marriage of Herr* (2009) 174 Cal.App.4th 1463, 1468 [facts of which a party seeking reconsideration was aware of at the time of the original ruling are not new or different facts, and do not support granting reconsideration]; Howerton Decl., ¶¶ C, D, F.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Palomino Place, LLC v. Davis Joint Unified School District, et al.**
Case No. CV-2025-2301

Hearing Date: **January 22, 2026** **Department Six** **9:00 a.m.**

On the Court's own motion, respondents Davis Joint Unified School District and Davis Joint Unified School District Board of Education's motion to strike portions of petitioner's first amended verified petition for writ of mandate and complaint for declaratory relief as a strategic lawsuit against public participation and respondents' demurrer to first amended verified petition for writ of mandate and complaint for declaratory relief are **CONTINUED** to **January 29, 2026**, at 9:00 a.m. in Department Six.